

25STCV08807 25STCV08807

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BACKGROUND

This case is a lemon law action.

On April 30, 2025, Plaintiff Mauricio Ruiz filed his first amended complaint against Defendant General Motors, LLC. The first amended complaint alleges four causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle.

On February 18, 2026, the parties filed a Notice of Settlement of Entire Case.

On June 11, 2026, Plaintiff filed a Motion for Attorney's Fees.

On July 31, 2026, Defendant filed an opposition.

On April 7, 2026, Plaintiff filed a reply.

TENTATIVE RULING

Plaintiff's Motion for Attorney's Fees is GRANTED in part. The Court will award \$28,620.37 in total fees and costs.

LEGAL STANDARD

Under the Song Beverly

Consumer Warranty Act, if a buyer prevails in the action, the buyer is allowed to recover costs and expenses, including attorney's fees based on actual time expended. (Civ. Code § 1794, subd. (d).)

The determination

of a reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22

Cal.4th 1084, 1095.) When assessing the amount of

any attorney's fee award, courts typically determine what

is reasonable through the application of the "lodestar" method. Under the

lodestar method, a base amount is calculated from a compilation of time reasonably spent and the reasonable hourly compensation of each attorney. (See Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of

University of California (1998)

67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

A plaintiff's verified

billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985)

167 Cal.App.3d 677, 682.) Counsel has the burden of providing the reasonable number of hours devoted to the litigation, through declarations, or redacted or unredacted timesheets or billing records. (See Concepcion

v. Amscan Holdings, Inc. (2014) 223 Cal.App.4th 1309, 1325.) "[T]he

verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are

erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

DISCUSSION

Here, Plaintiff

seeks \$41,035.87 in attorney's fees and costs. The Court will reduce this requested amount and award \$28,620.37 in total fees and costs.

Reasonable Rates

When considering each attorney's history, experience, and expertise, the Court finds the listed hourly rates reasonable.

There were two attorneys who did the bulk of the work on Plaintiff's case: David N. Barry and C. Richard Lara.

Barry works at an hourly rate of \$695/hr. (Barry Decl., ¶ 12(b).) Barry is a graduate of Pepperdine School of Law and is admitted to practice in California and New York. (Id. at ¶¶ 21-22.) Barry is the head of his own consumer rights firm, which he founded in August 2010. (Id. at ¶ 20.) Prior to founding his firm, Barry worked as lead trial counsel for one of the largest lemon law firms in California. (Ibid.) In his career, Barry has handled hundreds of lemon law and consumer rights cases. (Ibid.)

Lara works at an hourly rate of \$375/hr. (R. Lara Decl., ¶ 6.) Lara is a graduate of Loyola Law School and is licensed to practice in California. (Id. at ¶¶ 3-4.) Lara has been a part of The Barry Law Firm ever since he was admitted to the California bar. (Id. at ¶ 6.) Since then, Lara has primarily worked on lemon law cases for the firm. (Id. at ¶ 5.)

There are a few other attorneys who briefly worked on this case: Elizabeth Quinn, Kristopher Storti, Christopher Derhartounian, and Pauliana Lara. (See Motion, p. 13:1-13.) Combined these attorneys only spent 3.7 hours on this case, and their hourly rates range from \$350/hr. to \$675/hr. (Ibid.) Each of these attorneys have handled numerous lemon law cases since joining The Barry Law Firm. (See Quinn Decl., ¶ 11; Storti Decl., ¶ 6; P. Ruiz Decl., ¶ 6.)

Lastly, a survey of local lemon law and consumer rights attorneys shows that they charge hourly rates close, if not identical, to Barry's, Lara's, and the other attorney's listed rates. (See Barry Decl., ¶ 23(a)-(n).)

Given each attorney's history, experience, expertise, and similar rates from

other comparable local attorneys, the Court finds counsel's hourly rates reasonable. (See *PLCM Group v. Drexler*, (2000) 22 Cal.4th 1084, 1095.)

Reasonable Hours

The Court will award \$25,435.50
in attorney's fees.

Plaintiff's counsel
allegedly spent 78.3 hours on this case. This translates to \$37,301 in
attorney's fees. (See Motion, p. 13:1-13.) Defendant requests
the Court reduce or outright eliminate specific billing
entries because they are unreasonable and excessive.
(See Opp'n, pp. 4:8-7:22.) The Court considers these
and other specific entries below:

1. 1. Strike
3/3/25, 3/10/25, 3/13/25 and 3/17/25 time entries because they are for
pre-engagement work:

Reduced
from 2 hours to 0 hours, equaling to a reduction of \$750

Reduce the 9/23/25 time entry for the
deposition of Defendant's PMK

Reduced
from 2.5 hours to 2 hours, equaling to a reduction of \$187.50

Reduce the 11/3/25 time entries for
travel to and from Plaintiff's deposition

Reduced
from 6 hours to 3 hours, equaling to a reduction of \$1,125

Reduce the 11/18/25 time entry for
drafting opposition to Defendant's Motion for Protective Order:

Reduced
from 4 hours to 2 hours, equaling to a reduction of \$750

Reduce the 11/19/25 time entry for
drafting opposition to Defendant's Motion to Compel Compliance

Reduced
from 3 hours to 0 hours, equaling to a reduction of \$1,125

Reduce the 11/25/25 entries for review
of Defendant's reply brief and declaration in support of Defendant's Motion
to Compel Compliance

Reduced
.8 hours to 0 hours, equaling a reduction of \$325.

Reduce the 12/4/25 travel time to and
from a hearing

Reduced
1.5 total hours to 1.0, equaling a reduction of \$347.50.

Reduce the 6/8/26 entry for drafting
memorandum of costs

Reduce
1.0 hours to .5 hours, equaling a reduction of \$347.50.

Reduce the 8/3/26 entry for
anticipated time related to OSC re Dismissal

Reduce
2.0 hours to 1.0 hours, equaling a reduction of \$375.

Reduce the 8/14/26 entries for anticipated
travel time to and from hearing

Reduce
2.0 hours to 1.0 hours, equaling a reduction of \$695.

Strike all anticipated time entries
for addressing and handling a non-existent Motion to Tax Costs

Reduced

from 8.4 anticipated hours to 0 hours, equaling to a reduction of \$5,838

Given these reductions and

stricken hours, the total amount of attorney's fees will be reduced by \$11,865.50. Therefore, the Court will award \$25,435.50 in attorney's fees.

Reasonable Costs

Defendant also requests

the Court reduce, or outright eliminate, all unsubstantiated costs because they are either unnecessary or unreasonable. (See Opp'n, pp. 4:8-7:22.)

More specifically, Defendant requests the Court strike all Court Reporter Fees and "Other" costs. (Ibid.)

Plaintiff does not oppose striking

the Court Reporter Fees. (See Reply, p. 10:10-11.) Therefore, \$550 will be reduced from the total amount. However, the Court will not strike any

additional costs because Defendant's request is untimely as it was filed on July 31, 2026, fifty days after the memorandum of costs was served and filed.

(See Cal. Rules of Court, rule 3.1700, subd. (b)(1) ["Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum."].)

Accordingly, the Court

will strike \$550 from the total costs amount.

CONCLUSION

For these reasons, Plaintiff's

Motion for Attorney's Fees is GRANTED.

However, given the

total reductions as stated in the discussion section, the Court will only award \$28,620.37 in total fees and costs.